IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-105
CA (CAA) No. - 63/230/232/ND/2021
CA/31/2022

IN THE MATTER OF:
Lifestar Pharma Pvt. Ltd. & Ors.And Mankind pharma Pvt. Ltd. **....Applicant**

SECTION
U/s 230-232

Order delivered on 09.02.2022

CORAM:
SHRI ABNI RANJAN KUMAR SINHA
HON'BLE MEMBER (JUDICIAL)

SHRI AVINASH K. SRIVASTAVA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Ravi Sharma (Adv)
For the Respondent :

ORDER

CA/31/2022:-

By filing this application, the applicant has prayed for following reliefs:-

I. *"Issue appropriate clarification in respect of direction contained in paragraph 22(C) of order dated 03.01.2022;*

II. *Modify the direction contained in paragraph 22 (C) (i) of the order dated 03.01.2022 to the effect that "The meeting of the shareholders of Transferee Company is directed to be held through Video Conferencing/ Other Audio Visuals Means on 19.02.2022";*

III. *Pass such other and further orders as deemed necessary."*

Heard the Ld. Counsel appearing for the applicant and perused the averments made in the application. Ld. Counsel for the applicant submitted that in pursuance of the order dated 03.01.2022, the petitioners were directed to convene the meeting within 30 days. But since the notice was published on 13.01.2022, therefore, it could not be possible to convene the meeting within

30 days from the date of that order. He further submitted that in the notice the petitioners have mentioned the date of meeting as 19.02.2022, so, the order dated 03.01.2022 may be modified and the petitioners may be permitted to convene the meeting on 19.02.2022.

Considering the submissions and averments made in the application, we hereby allow the prayer of the applicant. Accordingly, we hereby modify the order dated 03.01.2022 and in para 22(c) it shall be read as **"the petitioners are directed to convene the meeting with respect to the Transferee Company on 19.02.2022"** as per the notice published in the advertisement.

With this the present **IA stands closed**.

Sd/-

(AVINASH K. SRIVASTAVA)
MEMBER (T)

Sd/-

(ABNI RANJAN KUMAR SINHA)
MEMBER (J)